

Present
Mr. Justice Sheikh Abdul Awal
Criminal Revision No. 1647 of 2008

Ahad Ali Moholder

.....Accused-petitioner.

-Versus-

State

.....opposite party.

No one appears

.....For the accused-petitioner.

Ms. Shahida Khatoon, D.A.G with

Ms. Sabina Perven, A.A.G with

Ms. Kohenoar Akter, A.A.G.

.....For the opposite party

Heard and Judgment on 16.01.2024.

Sheikh Abdul Awal, J:

This Rule was issued calling upon the opposite party to show cause as to why the impugned judgment and order dated 05.08.2008 passed by the learned Jononirapotta Bighnokari Aporadh Domon Tribunal and Special Sessions Judge, 2nd Court, Rajshahi in Criminal Appeal No. 81 of 2001 affirming the judgment and order of conviction and sentence dated 25.10.2001 passed by the learned Additional District Magistrate, Rashahi arising out of G.R. No. 69 of 1993 corresponding to Durgapur P.S. Case No. 6 dated 28.8.1993 convicting the accused-petitioner under Section 326 of the Penal Code and sentencing him thereunder to

suffer Imprisonment for a period of 01(one) year should not be set-aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

Today this matter appeared in the list for pronouncement of judgment.

No one appears.

In view of the fact that this petty old criminal Revision arising out of 1(one) year sentence has been dragging before this Court for more than 15 years, I am inclined to dispose of the same.

At the time of pronouncement of judgment, it appears from the record that this Court on 17.11.2008 at the time of issuance of the Rule granted bail to the accused petitioner for a period of 06(six) months and thereafter, no one took any steps to extend the order of bail as a result of which the said bail was expired long before on 17.05.2009. In that view of the above, I have no hesitation to hold that the accused petitioner is fugitive from law.

In the case of Anti-Corruption Commission Vs. Dr. HBM Iqbal Alamgir, reported in 15BLC where it has been observed by the Appellate Division that Court would not act in aid of an accused person who is a fugitive from law and justice.

In view of the above, this Rule must fail.

In the result, the Rule is discharged. The convict-petitioner, Ahad Ali Moholder is directed to surrender his bail bond within 3 (three) months from today to suffer his sentence, failing which the Trial Court below shall take necessary steps to secure arrest against the convict petitioner.

Send down the lower Court records at once.